

5. CU0002909 Jason Christ vs. Wendy Phares

Plaintiff Jason Christ's motion for preliminary injunction is denied.

"A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor." Code Civ. Proc. § 527(a). "The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial." *Grothe v. Cortlandt Corp.* (1992) 11 Cal.App.4th 1313, 1316. Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. *See, e.g., ReadyLink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1016; *Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 150.

"The decision to grant a preliminary injunction rests in the sound discretion of the trial court [B]efore the trial court can exercise its discretion the applicant must make a prima facie showing of entitlement to injunctive relief. *The applicant must demonstrate a real threat of immediate and irreparable injury.*" *Triple A Machine Shop, Inc. v. State of Cal.* (1989) 213 Cal.App.3d 131, 138 (italics added). Before a trial court may issue a nonstatutory injunction as a provisional remedy, it must appear that monetary relief would not afford adequate relief or that it would be extremely difficult to ascertain the amount of damages. Code Civ. Proc. § 526, subds. (a)(4) & (a)(5); *Thayer Plymouth Center, Inc. v. Chrysler Motors Corp.* (1967) 255 Cal.App.2d 300, 306. "[A]n injunction is an unusual or extraordinary equitable remedy which will not be granted if the remedy at law (usually damages) will adequately compensate the injured plaintiff," and the party seeking injunctive relief bears the burden to prove its absence. *Department of Fish & Game v. Anderson-Cottonwood Irrigation Dist.* (1992) 8 Cal.App.4th 1554, 1564-1565. "Put another way, if the legal remedy of compensatory damages is adequate to do complete justice between the parties, 'a proper exercise of equitable jurisdiction will not give equitable relief.' " *ZF Micro Solutions, Inc. v. TAT Capital Partners, Ltd.* (2022) 82 Cal.App.5th 992, 1000-1001 (citation omitted).

Such is the case here. Plaintiff has made no persuasive showing that he faces a threat of immediate and irreparable injury in the absence of injunctive relief. Moreover, he has made no persuasive showing that monetary relief would not afford adequate relief. Should Plaintiff prevail at trial, the trier of fact can readily ascertain monetary damages to compensate Plaintiff for his lost opportunities, if any, to participate in the Ecstatic Dance Nevada City events.

6. CU21-086089 George Horner, et al. vs. Deborah Carver

Appearances are required by the parties to discuss the status of the home and property in preparation for the sale of the property.